

If an engineer's manager (supervisor, boss etc.) in the workplace overrules the technical recommendations of the engineer, the engineer MUST explain the recommendations and:

- A. Stop work, whether the consequence of overruling the engineer's technical recommendations has public safety implications or not
- B. Discuss the situation with a 'neutral' manager, such as Human Resources
- **C. Explain the consequences to the engineering manager if the engineer's recommendations are not followed**
- D. Update his/her/their resume and look for another job

When a professional engineer acts as an Expert Witness, which of the following is FALSE:

- **A. The engineer's compensation must not be contingent on the legal outcome**
- B. The engineer may provide opinions and interpretation of facts, based on personal observations, experience and knowledge
- C. The engineer advises and interprets matters of law
- D. The engineer interprets technical information for people who do not have knowledge

In the following IMPERFECT definition of professional engineering, which word is NOT part of the correct definition? "Professional Engineering [is]: Any act of initiating, planning, designing, composing, evaluating, advising, reporting, directing or supervising that requires the application of engineering principles; and concerns the safeguarding of life, health, property, economic interests, the public welfare or the environment, or the managing of any such act.

- A. property
- B. advising
- C. composing
- **D. initiating**

The PEO Code of Ethics consists of:

- A. Rules for running the Association (PEO) itself
- **B. Rules of personal conduct for all engineers**
- C. Self-regulation
- D. All of the above

An engineer's paramount (or primary) duty is to:

- A. Their employer
- B. Their clients
- C. The public and society in general
- D. Their colleagues

Which of the following categories of license holder are NOT being requested to complete PEO's Practice Evaluation and Knowledge Program?

- A. All temporary and provisional license holders
- B. All limited license holders
- C. All practising and non-practising license holders
- D. Engineers-in-training (EIT)

Which of the following is NOT true of engineering consultancy practice in Ontario?

- A. A client may request a consultant's IP if it is relevant to the project, public safety or if is necessary for reviewing the engineering work.
- B. Engineering consultants are not legally permitted to advertise their services in trade publications.
- C. When testifying as an expert witness in a legal or other regulatory proceeding, fees must not be contingent on the outcome of the proceedings.
- D. It is prudent for the consultant to ask a client to keep the consultant's IP confidential by stating it as a clause in the contract.

Which statement about the Canadian legal system is FALSE?

- A. Statutes do not override Common Law
- B. A statute is a codification of existing common law or enactment of new law
- C. Legislation are statutes enacted by elected legislatures
- D. In Common Law, previous court decisions establish legal principles for judging subsequent cases.

In the tendering process, if a contractor submits a bid that complies with the terms, this bid is also called:

- A. Contract A
- B. Contract B
- C. Contract C
- D. Statement of Work

Which of the following is associated with Aristotle's ethical viewpoint?

- A. El Dorado
- **B. The golden mean**
- C. Val d'or
- D. The golden rule

An Industrial Design includes:

- A. Time limited right to make, use and sell an invention.
- B. A “distinguishing guise”: shape of goods or their containers, intended to show they were made by a particular company.
- C. Three-dimensional configuration of electronic components embodied in integrated circuit products.
- **D. Visual features of shape, configuration, pattern or ornament, applied to a finished article.**

What is the primary piece of Legislation that protects the environment in Canada?

- **A. Canadian Environmental Protection Act (CEPA)**
- B. Environmental Enforcement Act (EEA)
- C. Environmental Assessment Act (EAA)
- D. Canada Shipping Act (CSA)

According to PEO, an engineer who discovers potentially illegal, criminal or unethical activities in engineering work at the engineer's place of employment MUST FIRST:

- A. Report such matters to the media
- B. Consider filing a complaint with PEO (if appropriate)
- **C. Discuss with supervisory personnel**
- D. Report such matters to regulators

Which of the following is associated with Locke's ethical viewpoint?

- A. Good will
- B. The golden mean
- **C. People deserve respect**
- D. Maximize utility and minimize suffering

To qualify as a consulting engineer in Ontario, which of the following is NOT TRUE?

- A. Have professional liability insurance, or disclose to client that one does not have professional liability insurance (and must obtain a written consent from client)
- B. Be a holder of Certificate of Authorization
- C. Have 5 years minimum relevant professional engineering experience
- **D. Have 3 years minimum private practice experience**

Accountability, Respect, Integrity, Professionalism and Teamwork. These are the 5 core values of:

- A. APEGA
- B. OSPE
- C. Engineers Canada
- **D. PEO**

Quantum Meruit means that when the contract is repudiated,

- A. the courts will issue an order to stop fulfilling the contract.
- **B. the party performing the services must be paid 'as much as is reasonably deserved' for their time expended and materials supplied.**
- C. the guarantee is unenforceable.
- D. it is still considered to be substantial compliance.

In Ontario, which of the following is NOT true of non-resident or temporary licenses?

- A. PEO will accept applications from candidates holding CEAB-accredited bachelor's degrees
- **B. Holder of a temporary licence does not have to collaborate with a P.Eng.**
- C. An engineering collaborator must ensure that work done by the temporary licence holder complies with Canadian and Ontario codes
- D. Both the temporary license holder and collaborator should apply their seals to the engineering document with notes indicating their respective roles and responsibilities

Select the FALSE statement:

- **A. The tendering process does not always need to be fair but it does need to be flexible**
- B. Engineers often help with the tendering process by developing bid documents
- C. Liability insurance is essential if you are offering services directly to the public
- D. Engineers are concurrently liable under Contract and Tort law

The term "Indemnification" means

- **A. Compensation for harm or loss**

- B. The situation where a party owes money to another party
- C. The legal relationship between parties in a contract
- D. Employee's obligations to employer

Which of the following is (or are) true of PEO's non-resident or temporary licenses

- A. Issued on a project basis for a maximum period of 3 years
- B. Holder of a temporary licence must collaborate with an Ontario professional engineer, and the collaborator must ensure that work done by temporary licence holder complies with Canadian and Ontario codes.
- C. Only the non-resident practitioners is required to apply their seal to the resulting engineering document.
- D. Issued on a project basis for a maximum period of twenty four months

In Canada, which of the following organizations make the laws governing education, property, health care, preliminary inquiries and lesser criminal offences, traffic, etc.?

- A. Federal government
- B. Local government
- C. Provincial government
- D. Municipal government

Select the FALSE statement.

- A. Unlicensed practitioners are tried in the court system
- B. Most unlicensed practitioners are unaware they are breaking the law
- C. Unlicensed practitioners are disciplined by PEO
- D. There are more complaints about unlicensed practitioners than against licensed practitioners

Which of the following statements is NOT true?

- A. Unless a person is registered or licensed by the Association of Professional Engineers of the specified province or territory, that person may not imply that he or she is entitled to engage in professional engineering.
- B. Failure to act to correct or report a situation that the practitioner believes may endanger the safety or the welfare of the public is considered "Professional Misconduct"
- C. A practitioner shall act towards other practitioners with courtesy and good faith
- D. It is professionally acceptable to sign or seal all drawings, specifications, plans, reports or other documents prepared or checked by the practitioner

If an employer knowingly engages a person for work that requires the services of a professional engineer, and that person is not registered or licensed with the Association (PEO), which of the following is TRUE?

- A. The employer is in violation of the Civil Code
- **B. Both employer and employee are in violation of the Professional Engineers Act, and may be disciplined by PEO**
- C. The employee could be prosecuted for violation of the Professional Engineers Act
- D. The employer is NOT in violation of the Professional Engineers Act

The licensing of Professional Engineers aims to protect the public from all of the following, EXCEPT:

- A. Situations endangering public health and welfare
- B. Negligence
- **C. Law suits**
- D. Professional Misconduct

It is important that the professional engineer behaves ethically because;

- A. It reduces vulnerability to failure
- B. It helps to maintain the relationship of trust between the professional engineer and the public
- C. It is a legislated requirement and a moral obligation
- **D. All of above**

In Canada, which of the following organizations make the laws governing criminal law, intellectual property, postal service etc.?

- A. Municipal government
- B. Provincial government
- C. Local government
- **D. Federal government**

The core values of Professional Engineers Ontario are:

- A. Professionalism, Sustainability, Competence, Accountability, and Ethics.
- **B. Accountability, Respect, Integrity, Professionalism, and Teamwork.**
- C. Professionalism, Responsibility, Respect, Fairness, and Honesty.
- D. Diversity, Respect, Compliance, Professionalism, and Ethics.

Which of the following acts as the prosecutor in a PEO hearing?

- A. The Ontario Court of Justice
- B. The discipline committee
- **C. A delegation from the Complaints (or Investigative) Committee**
- D. The PEO council

A Certificate of Authorization (CoA)

- A. Is conferred upon each engineer at the iron ring ceremony
- **B. Is required by each firm providing engineering services to the public**
- C. Is conferred upon each engineer at the time of joining a consulting company
- D. Is conferred upon each engineer at the time of licensing

Which of the following is NOT TRUE of the Engineers Act?

- A. By-laws are rules for running the Association, including finances, meetings, committees, elections
- B. Regulations (e.g. Reg. 941/90) are rules established to implement the Engineers Act, and includes admission requirements, professional conduct and discipline
- **C. Regulations 260/08 promoted public awareness of the role of PEO**
- D. The Code of Ethics are rules of personal conduct for all engineers

A situation in which an engineer's loyalty and obligations may be compromised because of self-interests, or other loyalties and obligations, is termed:

- A. Concern of interest
- B. Interaction rules
- **C. Conflict of interest**
- D. Conceptual issue

Professional Misconduct is defined in...

- A. Ontario Regulation 260
- **B. Ontario Regulation 941**
- C. Engineer's Code of Ethics
- D. PEO Bylaw # 1

During a law suit, the party seeking to uphold the decision of a lower court is termed the

- A. Appellant
- B. Plaintiff
- C. Respondent
- D. Defendant

Which of the following is NOT a PEO license type?

- A. Provisional
- B. Limited
- C. Annual
- D. Temporary

In engineering practice which of the following best defines Conflict of Interest?

- A. Occurs when engineer receives a benefit or engages in a relationship which interferes with duty owed the client or employer
- B. Abusing confidential information
- C. Accepting secret commissions
- D. Misusing the employer's facility

CEPA's Polluter Pays Principle means:

- A. Lack of full scientific certainty shall not be used as a reason for postponing cost-effective measures to prevent environmental degradation.
- B. Science and traditional aboriginal knowledge are integral to decision-making. Social, economic and technical issues are to be considered in the risk management process.
- C. Companies or people that contaminate the environment are responsible for the costs they impose on society.
- D. National leadership is required to achieve ecosystem health and sustainable development by providing for the creation of science-based, national environmental standards.

Professional Engineers Ontario:

- A. Develops and advocates for public policy on engineering labour market
- B. Fosters excellence in engineering practice and regulation across Canada
- C. Is an advocacy body to develop engineering solutions for public policy, in matters such as the environment and climate change
- D. Operates under the authority of the Professional Engineers Act to serve and protect the public interest

Which of the following is NOT voluntary for Professional Engineers Ontario?

- A. Returning the professional seal to PEO upon retirement as professional engineer
- B. Joining OSPE once you are a professional engineer licensed in Ontario
- C. Reporting continuous professional development through PEAK
- **D. Serving on a PEO committee at least once during your career**

The Professional Engineer's seal may be applied to:

- A. Emails
- B. Contracts with employers or suppliers
- C. Design details developed by manufacturers, if verified by testing and /or approved by government bodies
- **D. Details and subsystem designs for specific applications that require professional engineering judgment**

The collapse of the Quebec Bridge in 1907, killing 75 workmen, was a critical event for Canadian engineers and engineering, because:

- A. Theodore Cooper, the chief engineer for the bridge, was held blameless in the tragedy.
- B. the main cause of the collapse was traced to poor-quality materials.
- **C. the collapse led to the eventual regulation of the engineering profession.**
- D. All of the above.

If an engineer has a 'conflict of conscience' with the employer's legitimate business (defence industry, alcoholic products, etc.), the engineer may resign from this employment. Otherwise, the engineer:

- A. Must complain to the employer
- B. Must complain to Human Resources
- **C. Must carry out their employment duties, and may, on their own time, look for alternate employment**
- D. Must call PEO for advice and consider making a regulatory complaint

For a Tort Law case to be successful and the plaintiff compensated, which of the following is NOT TRUE of the essential conditions that must be substantiated;

- A. Defendant breached a duty of care owed to the plaintiff by conduct
- **B. Plaintiff owed the defendant a duty of care**
- C. Defendant owed the plaintiff a duty of care
- D. Defendant's conduct related to the duty of care caused the injury to the plaintiff

A heightened obligation to care for the interests of another party, in priority to one's own interest, is also called:

- A. Mutual Intent
- **B. Fiduciary Duty**
- C. Privity of Contract
- D. Quantum Meruit

From the ethical perspective, engineering solutions to complex socio-technical problems are not always simple and clear, because of the following:

- A. Idiosyncrasy
- **B. Conflict in moral reasoning and interpretation**
- C. Moral principles
- D. People problems

The ethical theory that seeks to create the most good for the most people is referred to as;

- A. Aristotle's Virtue Ethics
- B. Kant's Duty Ethics
- **C. Mill's Utilitarianism**
- D. Kohlberg's Theory

If a professional engineer is found guilty of Professional Misconduct, the most severe penalty PEO's Disciplinary Committee may impose is:

- A. Suspension of license
- B. Reprimand and fine
- **C. Revoking of license**
- D. Imprisonment

Which of the following is NOT TRUE regarding the main goals for studying Ethics?

- A. To develop moral fiber or grounds for ethical decision-making
- B. To empower engineers to confront moral issues raised by activities and enhance independent moral thinking, tolerance and duty of care
- **C. To reinforce one's personal religious belief system**
- D. To develop "Moral Autonomy"; a consistent way of thinking and acting rationally about ethical issues

Which of the following lists includes the three branches of government?

- A. Administrative, judicial, legislative
- B. Administrative, executive, legislative
- C. Executive, administrative, judicial
- **D. Legislative, judicial, executive**

Which activity is PEO NOT involved in?

- A. Licensing
- B. Discipline
- C. Regulating
- **D. Membership performance reviews**

'Force majeure' clauses free parties from contract obligations that could not have been predicted, such as:

- A. Snow storms
- B. Labour disputes
- **C. War**
- D. Shipping delays

The most basic good is "good will", and all are encouraged to develop "good will", i.e. to be honest, keep your promise, obey the law and be fair. This is covered by which of the following ethical theories?

- **A. Kant's formalism**
- B. Mill's Utilitarianism
- C. Aristotle's virtue ethics
- D. Locke's rights ethics

Select the TRUE statement:

- **A. A contract is unenforceable if it is contrary to the Professional Engineers Act. R.R.O. 1990, REGULATION 941.**
- B. A promise made without consideration is still legally binding as long as it is recorded electronically.
- C. In the case of a fraudulent contract, the deceived party can cancel the contract but CANNOT claim compensation for damages.
- D. Incarcerated persons have the capacity to form contracts.

Which of the following is NOT a characteristic of "specialized knowledge", as applied to a professional?

- A. Intensive study, skill training and preparation
- B. Continued skill development
- C. Practical work experience
- D. Leadership